



Notification Waiver Determination

Sumitomo Mitsui Trust Bank – Morrison

Acquisition	Sumitomo Mitsui Trust Bank, Limited (SMTB) applied for a notification waiver in respect of its proposed acquisition of 15% of the units in H.R.L. Morrison & Co Group Limited Partnership (Morrison LP) and up to 15% of the ordinary shares in its general partner, H.R.L. Morrison & Co Group GP Limited (Morrison GP) (together, Morrison), and its commitment to make an investment into two Morrison managed funds, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	24 September 2026

Parties to the Acquisition	The acquirer, SMTB, is a Japan-based provider of financial services. In Australia, SMTB provides commercial lending services, including general corporate loans, fund financing, and property finance, mainly conducted through offshore booking transactions by SMTB's Singapore Branch, together with minority debt and equity investments in Australian assets and funds. SMTB has a representative office in Sydney, which is focussed only on local market research. SMTB is a wholly owned subsidiary of Sumitomo Mitsui Trust Group, Inc (SMTG). SMTG is the holding company of the SMTG corporate group, a Japanese financial group predominately focused on trust banking and asset management. The target, Morrison, is a global infrastructure investment firm headquartered in New Zealand that invests globally in private and listed infrastructure.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between SMTB and Morrison in the supply of infrastructure investment and management services in Australia.

	b. the parties' combined share in the supply of fund management services to customers in Australia is low, the increase in share of supply arising from the Acquisition would be small and there are alternative suppliers of fund management services to customers in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
--	---

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**